THE facts, which involve the validity of a subpœna *duces tecum* issued to a corporation, and the right of an officer thereof to refuse to produce the documents required by such subpœna on the ground that they tended to incriminate him, are stated in the opinion.

*Mr. John B. Stanchfield,* with whom *Mr. Louis S. Levy* and *Mr. William M. Parke* were on the brief, for plaintiff in error and appellant:

The disclosure of the contents of the letter press copy book, produced by appellant before the grand jury, would tend to incriminate plaintiff in error; the contents of the letter press copy book would form a link in the chain of evidence exposing him to indictment and to conviction on the two indictments previously found against him in the same court. *In re Chapman,* 153 Fed. Rep. 371; *In re Hale,* 139 Fed. Rep. 496; *S. C.,* aff'd 201 U. S. 439; *Fort* v. *Buchanan,* 113 Fed. Rep. 156.

The privilege of a witness against producing books and papers under a subpœna *duces tecum* when the production thereof would tend to incriminate him, is even more fully protected than his privilege of refusing to make answer orally under an ordinary subpœna, when his oral answer would tend to incriminate him; because the former privilege is protected by both the Fourth and Fifth Amendments, while the latter is protected by the Fifth Amendment only. *Boyd* v. *United States,* 116 U. S. 616; *United States* v. *Collins,* 146 Fed. Rep. 555; *United States* v. *Armour,* 142 Fed. Rep. 808.

An officer of a corporation who actually holds the physical possession, custody and control of books or papers of the corporation which he is required by a subpœna *duces tecum* to produce, is entitled to the same protection against exposing the contents thereof which would tend to incriminate him, as if the books and papers were absolutely his own. *In re Hale,* 139 Fed. Rep. 496; *S. C.,*